

SENATE BILL 688

By White

AN ACT to amend Tennessee Code Annotated, Title 49, Chapter 1; Title 49, Chapter 3 and Title 49, Chapter 5, relative to the state board of education's subpoena power.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-5-415, is amended by deleting the section and substituting:

The chair of the state board of education, or the chair's designee, may issue subpoenas for the appearance of persons or the production of items, including, but not limited to, documents; videos; and audio recordings, that the chair, or the chair's designee, considers material or relevant to:

(1) An investigation being conducted by the state board, within or outside of this state, pursuant to the state board's authority to revoke, suspend, refuse to issue, or renew a license or formally reprimand a licensed educator; or

(2) An accountability hearing being conducted by the state board in accordance with § 49-3-112(c) for a local education agency operating a public school, or a public charter school, receiving a "D" or "F" letter grade.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.